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Michael B. de Leeuw argued the cause for petitioners. With him on the briefs were *Tamar S. Wise*, *Stuart A. Shoreinstein*, *Jesse R. Loffler*, and *William A. Lesser*.

Paul W. Hughes argued the cause for respondents. With him on the brief were *Michael B. Kimberly*, *Andrew J. Pincus*, *Charles A. Rothfeld*, *Robert T. Perry*, *Eugene Volokh*, and *Eugene R. Fidell*.*

JUSTICE KAVANAUGH delivered the opinion of the Court.

The Free Speech Clause of the First Amendment constrains governmental actors and protects private actors. To draw the line between governmental and private, this Court applies what is known as the state-action doctrine. Under that doctrine, as relevant here, a private entity may be considered a state actor when it exercises a function “traditionally exclusively reserved to the State.” *Jackson v. Metropolitan Edison Co.*, 419 U. S. 345, 352 (1974).

*Briefs of *amici curiae* urging reversal were filed for the CATO Institute by *David Debold* and *Ilya Shapiro*; for Chicago Access Corporation by *Erin E. Murphy*, *Michael D. Lieberman*, and *Jim McVane*; and for the Pacific Legal Foundation et al. by *James M. Manley* and *Daniel M. Ortner*.

Briefs of *amici curiae* urging affirmance were filed for the Alliance for Community Media et al. by *James N. Horwood*, *Tillman L. Lay*, *Peter J. Hopkins*, and *Jeffrey M. Bayne*; for the American Civil Liberties Union et al. by *David D. Cole*, *Arthur N. Eisenberg*, and *Amanda Shanor*; for the Knight First Amendment Institute at Columbia University by *Katherine Fallow* and *Jameel Jaffer*; for the National Police Accountability Project by *David M. Shapiro* and *Daniel M. Greenfield*; and for the New York County Lawyers Association by *Carolyn A. Kubitschek*.

Briefs of *amici curiae* were filed for the Chamber of Commerce of the United States of America by *Catherine E. Stetson*, *Colleen E. Roh Sinz-dak*, and *Daryl Joseffer*; for Electronic Frontier Foundation by *David Greene*; for Internet Association by *Chad Golder*; and for NCTA—The Internet & Television Association by *Howard J. Symons*, *Jessica Ring Amunson*, *Rick C. Chesson*, *Neal M. Goldberg*, *Michael S. Schooler*, and *Diane B. Burstein*.

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This state-action case concerns the public access channels on Time Warner’s cable system in Manhattan. Public access channels are available for private citizens to use. The public access channels on Time Warner’s cable system in Manhattan are operated by a private nonprofit corporation known as MNN. The question here is whether MNN—even though it is a private entity—nonetheless is a state actor when it operates the public access channels. In other words, is operation of public access channels on a cable system a traditional, exclusive public function? If so, then the First Amendment would restrict MNN’s exercise of editorial discretion over the speech and speakers on the public access channels.

Under the state-action doctrine as it has been articulated and applied by our precedents, we conclude that operation of public access channels on a cable system is not a traditional, exclusive public function. Moreover, a private entity such as MNN who opens its property for speech by others is not transformed by that fact alone into a state actor. In operating the public access channels, MNN is a private actor, not a state actor, and MNN therefore is not subject to First Amendment constraints on its editorial discretion. We reverse in relevant part the judgment of the Second Circuit, and we remand the case for further proceedings consistent with this opinion.

I

A

Since the 1970s, public access channels have been a regular feature on cable television systems throughout the United States. In the 1970s, Federal Communications Commission regulations required certain cable operators to set aside channels on their cable systems for public access. In 1979, however, this Court ruled that the FCC lacked statutory authority to impose that mandate. See *FCC v. Midwest Video Corp.*, 440 U. S. 689 (1979). A few years later, Congress passed and President Reagan signed the Cable Communica-

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tions Policy Act of 1984. 98 Stat. 2779. The Act authorized state and local governments to require cable operators to set aside channels on their cable systems for public access. 47 U. S. C. § 531(b).

The New York State Public Service Commission regulates cable franchising in New York State and requires cable operators in the State to set aside channels on their cable systems for public access. 16 N. Y. Codes, Rules & Regs. §§ 895.1(f), 895.4(b) (2018). State law requires that use of the public access channels be free of charge and first-come, first-served. §§ 895.4(c)(4) and (6). Under state law, the cable operator operates the public access channels unless the local government in the area chooses to itself operate the channels or designates a private entity to operate the channels. § 895.4(c)(1).

Time Warner (now known as Charter) operates a cable system in Manhattan. Under state law, Time Warner must set aside some channels on its cable system for public access. New York City (the City) has designated a private nonprofit corporation named Manhattan Neighborhood Network, commonly referred to as MNN, to operate Time Warner's public access channels in Manhattan. This case involves a complaint against MNN regarding its management of the public access channels.

B

Because this case comes to us on a motion to dismiss, we accept the allegations in the complaint as true. See *Ashcroft v. Iqbal*, 556 U. S. 662, 678 (2009).

DeeDee Halleck and Jesus Papoleto Melendez produced public access programming in Manhattan. They made a film about MNN's alleged neglect of the East Harlem community. Halleck submitted the film to MNN for airing on MNN's public access channels, and MNN later televised the film. Afterwards, MNN fielded multiple complaints about the film's content. In response, MNN temporarily suspended Halleck from using the public access channels.

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Halleck and Melendez soon became embroiled in another dispute with MNN staff. In the wake of that dispute, MNN ultimately suspended Halleck and Melendez from all MNN services and facilities.

Halleck and Melendez then sued MNN, among other parties, in Federal District Court. The two producers claimed that MNN violated their First Amendment free-speech rights when MNN restricted their access to the public access channels because of the content of their film.

MNN moved to dismiss the producers' First Amendment claim on the ground that MNN is not a state actor and therefore is not subject to First Amendment restrictions on its editorial discretion. The District Court agreed with MNN and dismissed the producers' First Amendment claim.

The Second Circuit reversed in relevant part. 882 F. 3d 300, 308 (2018). In the majority opinion authored by Judge Newman and joined by Judge Lohier, the court stated that the public access channels in Manhattan are a public forum for purposes of the First Amendment. Reasoning that "public forums are usually operated by governments," the court concluded that MNN is a state actor subject to First Amendment constraints. *Id.*, at 306–307. Judge Lohier added a concurring opinion, explaining that MNN also qualifies as a state actor for the independent reason that "New York City delegated to MNN the traditionally public function of administering and regulating speech in the public forum of Manhattan's public access channels." *Id.*, at 309.

Judge Jacobs dissented in relevant part, opining that MNN is not a state actor. He reasoned that a private entity's operation of an open forum for speakers does not render the host entity a state actor. Judge Jacobs further stated that the operation of public access channels is not a traditional, exclusive public function.

We granted certiorari to resolve disagreement among the Courts of Appeals on the question whether private operators of public access cable channels are state actors subject to the

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First Amendment. 586 U.S. 942 (2018). Compare 882 F.3d 300 (case below), with *Wilcher v. Akron*, 498 F.3d 516 (CA6 2007); and *Alliance for Community Media v. FCC*, 56 F.3d 105 (CA DC 1995).

II

Ratified in 1791, the First Amendment provides in relevant part that “Congress shall make no law . . . abridging the freedom of speech.” Ratified in 1868, the Fourteenth Amendment makes the First Amendment’s Free Speech Clause applicable against the States: “No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law” §1. The text and original meaning of those Amendments, as well as this Court’s longstanding precedents, establish that the Free Speech Clause prohibits only *governmental* abridgment of speech. The Free Speech Clause does not prohibit *private* abridgment of speech. See, e.g., *Denver Area Ed. Telecommunications Consortium, Inc. v. FCC*, 518 U.S. 727, 737 (1996) (plurality opinion); *Hurley v. Irish-American Gay, Lesbian and Bisexual Group of Boston, Inc.*, 515 U.S. 557, 566 (1995); *Hudgens v. NLRB*, 424 U.S. 507, 513 (1976); cf. *Miami Herald Publishing Co. v. Tornillo*, 418 U.S. 241, 256 (1974).

In accord with the text and structure of the Constitution, this Court’s state-action doctrine distinguishes the government from individuals and private entities. See *Brentwood Academy v. Tennessee Secondary School Athletic Assn.*, 531 U.S. 288, 295–296 (2001). By enforcing that constitutional boundary between the governmental and the private, the state-action doctrine protects a robust sphere of individual liberty.

Here, the producers claim that MNN, a private entity, restricted their access to MNN’s public access channels because of the content of the producers’ film. The producers have advanced a First Amendment claim against MNN.

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The threshold problem with that First Amendment claim is a fundamental one: MNN is a private entity.

Relying on this Court’s state-action precedents, the producers assert that MNN is nonetheless a state actor subject to First Amendment constraints on its editorial discretion. Under this Court’s cases, a private entity can qualify as a state actor in a few limited circumstances—including, for example, (i) when the private entity performs a traditional, exclusive public function, see, *e. g.*, *Jackson*, 419 U. S., at 352–354; (ii) when the government compels the private entity to take a particular action, see, *e. g.*, *Blum v. Yaretsky*, 457 U. S. 991, 1004–1005 (1982); or (iii) when the government acts jointly with the private entity, see, *e. g.*, *Lugar v. Edmondson Oil Co.*, 457 U. S. 922, 941–942 (1982).

The producers’ primary argument here falls into the first category: The producers contend that MNN exercises a traditional, exclusive public function when it operates the public access channels on Time Warner’s cable system in Manhattan. We disagree.

A

Under the Court’s cases, a private entity may qualify as a state actor when it exercises “powers traditionally exclusively reserved to the State.” *Jackson*, 419 U. S., at 352. It is not enough that the federal, state, or local government exercised the function in the past, or still does. And it is not enough that the function serves the public good or the public interest in some way. Rather, to qualify as a traditional, exclusive public function within the meaning of our state-action precedents, the government must have traditionally *and* exclusively performed the function. See *Rendell-Baker v. Kohn*, 457 U. S. 830, 842 (1982); *Jackson*, 419 U. S., at 352–353; *Evans v. Newton*, 382 U. S. 296, 300 (1966).

The Court has stressed that “very few” functions fall into that category. *Flagg Bros., Inc. v. Brooks*, 436 U. S. 149, 158 (1978). Under the Court’s cases, those functions include, for example, running elections and operating a company town.

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See *Terry v. Adams*, 345 U. S. 461, 468–470 (1953) (elections); *Marsh v. Alabama*, 326 U. S. 501, 505–509 (1946) (company town); *Smith v. Allwright*, 321 U. S. 649, 662–666 (1944) (elections); *Nixon v. Condon*, 286 U. S. 73, 84–89 (1932) (elections).¹ The Court has ruled that a variety of functions do not fall into that category, including, for example: running sports associations and leagues, administering insurance payments, operating nursing homes, providing special education, representing indigent criminal defendants, resolving private disputes, and supplying electricity. See *American Mfrs. Mut. Ins. Co. v. Sullivan*, 526 U. S. 40, 55–57 (1999) (insurance payments); *National Collegiate Athletic Assn. v. Tarkanian*, 488 U. S. 179, 197, n. 18 (1988) (college sports); *San Francisco Arts & Athletics, Inc. v. United States Olympic Comm.*, 483 U. S. 522, 544–545 (1987) (amateur sports); *Blum*, 457 U. S., at 1011–1012 (nursing home); *Rendell-Baker*, 457 U. S., at 842 (special education); *Polk County v. Dodson*, 454 U. S. 312, 318–319 (1981) (public defender); *Flagg Bros.*, 436 U. S., at 157–163 (private dispute resolution); *Jackson*, 419 U. S., at 352–354 (electric service).

The relevant function in this case is operation of public access channels on a cable system. That function has not traditionally and exclusively been performed by government.

Since the 1970s, when public access channels became a regular feature on cable systems, a variety of private and public actors have operated public access channels, including: private cable operators; private nonprofit organizations; municipalities; and other public and private community organizations such as churches, schools, and libraries. See *Denver*

¹ Relatedly, this Court has recognized that a private entity may, under certain circumstances, be deemed a state actor when the government has outsourced one of its constitutional obligations to a private entity. In *West v. Atkins*, for example, the State was constitutionally obligated to provide medical care to prison inmates. 487 U. S. 42, 56 (1988). That scenario is not present here because the government has no such obligation to operate public access channels.

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Area, 518 U. S., at 761–762 (plurality opinion); R. Oringel & S. Buske, *The Access Manager’s Handbook: A Guide for Managing Community Television* 14–17 (1987).

The history of public access channels in Manhattan further illustrates the point. In 1971, public access channels first started operating in Manhattan. See D. Brenner, M. Price, & M. Meyerson, *Cable Television and Other Nonbroadcast Video* §6:29, p. 6–47 (2018). Those early Manhattan public access channels were operated in large part by private cable operators, with some help from private nonprofit organizations. See G. Gillespie, *Public Access Cable Television in the United States and Canada* 37–38 (1975); Janes, *History and Structure of Public Access Television*, 39 *J. Film & Video*, No. 3, pp. 15–17 (1987). Those private cable operators continued to operate the public access channels until the early 1990s, when MNN (also a private entity) began to operate the public access channels.

In short, operating public access channels on a cable system is not a traditional, exclusive public function within the meaning of this Court’s cases.

B

To avoid that conclusion, the producers widen the lens and contend that the relevant function here is not simply the operation of public access channels on a cable system, but rather is more generally the operation of a public forum for speech. And according to the producers, operation of a public forum for speech is a traditional, exclusive public function.

That analysis mistakenly ignores the threshold state-action question. When the government provides a forum for speech (known as a public forum), the government may be constrained by the First Amendment, meaning that the government ordinarily may not exclude speech or speakers from the forum on the basis of viewpoint, or sometimes even on the basis of content. See, e.g., *Southeastern Promotions, Ltd. v. Conrad*, 420 U. S. 546, 547, 555 (1975) (private

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theater leased to the city); *Police Dept. of Chicago v. Mosley*, 408 U. S. 92, 93, 96 (1972) (sidewalks); *Hague v. Committee for Industrial Organization*, 307 U. S. 496, 515–516 (1939) (streets and parks).

By contrast, when a private entity provides a forum for speech, the private entity is not ordinarily constrained by the First Amendment because the private entity is not a state actor. The private entity may thus exercise editorial discretion over the speech and speakers in the forum. This Court so ruled in its 1976 decision in *Hudgens v. NLRB*. There, the Court held that a shopping center owner is not a state actor subject to First Amendment requirements such as the public forum doctrine. 424 U. S., at 520–521; see also *Lloyd Corp. v. Tanner*, 407 U. S. 551, 569–570 (1972); *Central Hardware Co. v. NLRB*, 407 U. S. 539, 547 (1972); *Alliance for Community Media*, 56 F. 3d, at 121–123.

The *Hudgens* decision reflects a commonsense principle: Providing some kind of forum for speech is not an activity that only governmental entities have traditionally performed. Therefore, a private entity who provides a forum for speech is not transformed by that fact alone into a state actor. After all, private property owners and private lessees often open their property for speech. Grocery stores put up community bulletin boards. Comedy clubs host open mic nights. As Judge Jacobs persuasively explained, it “is not at all a near-exclusive function of the state to provide the forums for public expression, politics, information, or entertainment.” 882 F. 3d, at 311 (opinion concurring in part and dissenting in part).

In short, merely hosting speech by others is not a traditional, exclusive public function and does not alone transform private entities into state actors subject to First Amendment constraints.

If the rule were otherwise, all private property owners and private lessees who open their property for speech would be subject to First Amendment constraints and would

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lose the ability to exercise what they deem to be appropriate editorial discretion within that open forum. Private property owners and private lessees would face the unappetizing choice of allowing all comers or closing the platform altogether. “The Constitution by no means requires such an attenuated doctrine of dedication of private property to public use.” *Hudgens*, 424 U. S., at 519 (internal quotation marks omitted). Benjamin Franklin did not have to operate his newspaper as “a stagecoach, with seats for everyone.” F. Mott, *American Journalism* 55 (3d ed. 1962). That principle still holds true. As the Court said in *Hudgens*, to hold that private property owners providing a forum for speech are constrained by the First Amendment would be “to create a court-made law wholly disregarding the constitutional basis on which private ownership of property rests in this country.” 424 U. S., at 517 (internal quotation marks omitted). The Constitution does not disable private property owners and private lessees from exercising editorial discretion over speech and speakers on their property.²

The producers here are seeking in effect to circumvent this Court’s case law, including *Hudgens*. But *Hudgens* is sound, and we therefore reaffirm our holding in that case.³

² A distinct question not raised here is the degree to which the First Amendment *protects* private entities such as Time Warner or MNN from government legislation or regulation requiring those private entities to open their property for speech by others. Cf. *Turner Broadcasting System, Inc. v. FCC*, 512 U. S. 622, 636–637 (1994).

³ In *Cornelius v. NAACP Legal Defense & Educational Fund, Inc.*, this Court said in passing dicta that “a speaker must seek access to public property or to private property dedicated to public use to evoke First Amendment concerns.” 473 U. S. 788, 801 (1985). But *Cornelius* dealt with government-owned property. As JUSTICE THOMAS explained in *Denver Area Educational Telecommunications Consortium, Inc. v. FCC*, the Court’s admittedly imprecise and overbroad phrase in *Cornelius* is not consistent with this Court’s case law and should not be read to suggest that private property owners or private lessees are subject to First Amendment constraints whenever they dedicate their private property to

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C

Next, the producers retort that this case differs from *Hudgens* because New York City has designated MNN to operate the public access channels on Time Warner's cable system, and because New York State heavily regulates MNN with respect to the public access channels. Under this Court's cases, however, those facts do not establish that MNN is a state actor.

New York City's designation of MNN to operate the public access channels is analogous to a government license, a government contract, or a government-granted monopoly. But as the Court has long held, the fact that the government licenses, contracts with, or grants a monopoly to a private entity does not convert the private entity into a state actor—unless the private entity is performing a traditional, exclusive public function. See, e.g., *San Francisco Arts & Athletics*, 483 U. S., at 543–544 (exclusive-use rights and corporate charters); *Blum*, 457 U. S., at 1011 (licenses); *Rendell-Baker*, 457 U. S., at 840–841 (contracts); *Polk County*, 454 U. S., at 319, n. 9, and 320–322 (law licenses); *Jackson*, 419 U. S., at 351–352 (electric monopolies); *Columbia Broadcasting System, Inc. v. Democratic National Committee*, 412 U. S. 94, 120–121 (1973) (broadcast licenses); *Moose Lodge No. 107 v. Irvis*, 407 U. S. 163, 176–177 (1972) (liquor licenses); cf. *Trustees of Dartmouth College v. Woodward*, 4 Wheat. 518, 638–639 (1819) (corporate charters). The same principle applies if the government funds or subsidizes a private entity. See *Blum*, 457 U. S., at 1011; *Rendell-Baker*, 457 U. S., at 840.

Numerous private entities in America obtain government licenses, government contracts, or government-granted monopolies. If those facts sufficed to transform a private en-

public use or otherwise open their property for speech. 518 U. S. 727, 827–828 (1996) (opinion concurring in judgment in part and dissenting in part).

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tity into a state actor, a large swath of private entities in America would suddenly be turned into state actors and be subject to a variety of constitutional constraints on their activities. As this Court’s many state-action cases amply demonstrate, that is not the law. Here, therefore, the City’s designation of MNN to operate the public access channels on Time Warner’s cable system does not make MNN a state actor.

So, too, New York State’s extensive regulation of MNN’s operation of the public access channels does not make MNN a state actor. Under the State’s regulations, air time on the public access channels must be free, and programming must be aired on a first-come, first-served basis. Those regulations restrict MNN’s editorial discretion and in effect require MNN to operate almost like a common carrier. But under this Court’s cases, those restrictions do not render MNN a state actor.

In *Jackson v. Metropolitan Edison Co.*, the leading case on point, the Court stated that the “fact that a business is subject to state regulation does not by itself convert its action into that of the State.” 419 U. S., at 350. In that case, the Court held that “a heavily regulated, privately owned utility, enjoying at least a partial monopoly in the providing of electrical service within its territory,” was not a state actor. *Id.*, at 358. The Court explained that the “mere existence” of a “regulatory scheme”—even if “extensive and detailed”—did not render the utility a state actor. *Id.*, at 350, and n. 7. Nor did it matter whether the State had authorized the utility to provide electric service to the community, or whether the utility was the only entity providing electric service to much of that community.

This case closely parallels *Jackson*. Like the electric utility in *Jackson*, MNN is “a heavily regulated, privately owned” entity. *Id.*, at 358. As in *Jackson*, the regulations do not transform the regulated private entity into a state actor.

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Put simply, being regulated by the State does not make one a state actor. See *Sullivan*, 526 U. S., at 52; *Blum*, 457 U. S., at 1004; *Rendell-Baker*, 457 U. S., at 841–842; *Jackson*, 419 U. S., at 350; *Moose Lodge*, 407 U. S., at 176–177. As the Court’s cases have explained, the “being heavily regulated makes you a state actor” theory of state action is entirely circular and would significantly endanger individual liberty and private enterprise. The theory would be especially problematic in the speech context, because it could eviscerate certain private entities’ rights to exercise editorial control over speech and speakers on their properties or platforms. Not surprisingly, as JUSTICE THOMAS has pointed out, this Court has “never even hinted that regulatory control, and particularly direct regulatory control over a private entity’s First Amendment speech rights,” could justify subjecting the regulated private entity to the constraints of the First Amendment. *Denver Area*, 518 U. S., at 829 (opinion concurring in judgment in part and dissenting in part).

In sum, we conclude that MNN is not subject to First Amendment constraints on how it exercises its editorial discretion with respect to the public access channels. To be sure, MNN is subject to state-law constraints on its editorial discretion (assuming those state laws do not violate a federal statute or the Constitution). If MNN violates those state laws, or violates any applicable contracts, MNN could perhaps face state-law sanctions or liability of some kind. We of course take no position on any potential state-law questions. We simply conclude that MNN, as a private actor, is not subject to First Amendment constraints on how it exercises editorial discretion over the speech and speakers on its public access channels.

III

Perhaps recognizing the problem with their argument that MNN is a state actor under ordinary state-action principles applicable to private entities and private property, the pro-

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ducers alternatively contend that the public access channels are actually the property of New York City, not the property of Time Warner or MNN. On this theory, the producers say (and the dissent agrees) that MNN is in essence simply managing government property on behalf of New York City.

The short answer to that argument is that the public access channels are not the property of New York City. Nothing in the record here suggests that a government (federal, state, or city) owns or leases either the cable system or the public access channels at issue here. Both Time Warner and MNN are private entities. Time Warner is the cable operator, and it owns its cable network, which contains the public access channels. MNN operates those public access channels with its own facilities and equipment. The City does not own or lease the public access channels, and the City does not possess a formal easement or other property interest in those channels. The franchise agreements between the City and Time Warner do not say that the City has any property interest in the public access channels. On the contrary, the franchise agreements expressly place the public access channels “under the jurisdiction” of MNN. App. 22. Moreover, the producers did not allege in their complaint that the City has a property interest in the channels. And the producers have not cited any basis in state law for such a conclusion. Put simply, the City does not have “any formal easement or other property interest in those channels.” *Denver Area*, 518 U. S., at 828 (opinion of THOMAS, J.).

It does not matter that a provision in the franchise agreements between the City and Time Warner allowed the City to designate a private entity to operate the public access channels on Time Warner’s cable system. Time Warner still owns the cable system. And MNN still operates the public access channels. To reiterate, nothing in the franchise agreements suggests that the City possesses any property interest in Time Warner’s cable system, or in the public access channels on that system.

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It is true that the City has allowed the cable operator, Time Warner, to lay cable along public rights-of-way in the City. But Time Warner's access to public rights-of-way does not alter the state-action analysis. For Time Warner, as for other cable operators, access to public rights-of-way is essential to lay cable and construct a physical cable infrastructure. See *Turner Broadcasting System, Inc. v. FCC*, 512 U. S. 622, 628 (1994). But the same is true for utility providers, such as the electric utility in *Jackson*. Put simply, a private entity's permission from government to use public rights-of-way does not render that private entity a state actor.

Having said all that, our point here should not be read too broadly. Under the laws in certain States, including New York, a local government may decide to itself operate the public access channels on a local cable system (as many local governments in New York State and around the country already do), or could take appropriate steps to obtain a property interest in the public access channels. Depending on the circumstances, the First Amendment might then constrain the local government's operation of the public access channels. We decide only the case before us in light of the record before us.

* * *

It is sometimes said that the bigger the government, the smaller the individual. Consistent with the text of the Constitution, the state-action doctrine enforces a critical boundary between the government and the individual, and thereby protects a robust sphere of individual liberty. Expanding the state-action doctrine beyond its traditional boundaries would expand governmental control while restricting individual liberty and private enterprise. We decline to do so in this case.

MNN is a private entity that operates public access channels on a cable system. Operating public access channels on

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a cable system is not a traditional, exclusive public function. A private entity such as MNN who opens its property for speech by others is not transformed by that fact alone into a state actor. Under the text of the Constitution and our precedents, MNN is not a state actor subject to the First Amendment. We reverse in relevant part the judgment of the Second Circuit, and we remand the case for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG, JUSTICE BREYER, and JUSTICE KAGAN join, dissenting.

The Court tells a very reasonable story about a case that is not before us. I write to address the one that is.

This is a case about an organization appointed by the government to administer a constitutional public forum. (It is not, as the Court suggests, about a private property owner that simply opened up its property to others.) New York City (the City) secured a property interest in public-access television channels when it granted a cable franchise to a cable company. State regulations require those public-access channels to be made open to the public on terms that render them a public forum. The City contracted out the administration of that forum to a private organization, petitioner Manhattan Community Access Corporation (MNN). By accepting that agency relationship, MNN stepped into the City's shoes and thus qualifies as a state actor, subject to the First Amendment like any other.

I

A

A cable-television franchise is, essentially, a license to create a system for distributing cable TV in a certain area. It is a valuable right, usually conferred on a private company by a local government. See 47 U. S. C. §§ 522(9)–(10), 541(a)(2), (b)(1); *Turner Broadcasting System, Inc. v. FCC*,

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512 U.S. 622, 628 (1994). A private company cannot enter a local cable market without one. § 541(b)(1).

Cable companies transmit content through wires that stretch “between a transmission facility and the television sets of individual subscribers.” *Id.*, at 627–628. Creating this network of wires is a disruptive undertaking that “entails the use of public rights-of-way and easements.” *Id.*, at 628.

New York State authorizes municipalities to grant cable franchises to cable companies of a certain size only if those companies agree to set aside at least one public-access channel. 16 N. Y. Codes, Rules & Regs. §§ 895.1(f), 895.4(b)(1) (2016). New York then requires that those public-access channels be open to all comers on “a first-come, first-served, nondiscriminatory basis.” § 895.4(c)(4). Likewise, the State prohibits both cable franchisees and local governments from “exercis[ing] any editorial control” over the channels, aside from regulating obscenity and other unprotected content. §§ 895.4(c)(8)–(9).

B

Years ago, New York City (no longer a party to this suit) and Time Warner Entertainment Company (never a party to this suit) entered into a cable-franchise agreement. App. 22. Time Warner received a cable franchise; the City received public-access channels. The agreement also provided that the public-access channels would be operated by an independent, nonprofit corporation chosen by the Manhattan borough president. But the City, as the practice of other New York municipalities confirms, could have instead chosen to run the channels itself. See § 895.4(c)(1); Brief for Respondents 35 (citing examples).

MNN is the independent nonprofit that the borough president appointed to run the channels; indeed, MNN appears to have been incorporated in 1991 for that precise purpose, with seven initial board members selected by the borough president (though only two thus selected today). See App. 23;

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Brief for Respondents 7, n. 1. The City arranged for MNN to receive startup capital from Time Warner and to be funded through franchise fees from Time Warner and other Manhattan cable franchisees. App. 23; Brief for New York County Lawyers Association (NYCLA) as *Amicus Curiae* 27; see also App. to Brief for Respondents 19a. As the borough president announced upon MNN’s formation in 1991, MNN’s “central charge is to administer and manage all the public access channels of the cable television systems in Manhattan.” App. to Brief for NYCLA as *Amicus Curiae* 1.

As relevant here, respondents DeeDee Halleck and Jesus Papoleto Melendez sued MNN in U. S. District Court for the Southern District of New York under 42 U. S. C. § 1983. They alleged that the public-access channels, “[r]equired by state regulation and [the] local franchise agreements,” are “a designated public forum of unlimited character”; that the City had “delegated control of that public forum to MNN”; and that MNN had, in turn, engaged in viewpoint discrimination in violation of respondents’ First Amendment rights. App. 39.

The District Court dismissed respondents’ First Amendment claim against MNN. The U. S. Court of Appeals for the Second Circuit reversed that dismissal, concluding that the public-access channels “are public forums and that [MNN’s] employees were sufficiently alleged to be state actors taking action barred by the First Amendment.” 882 F. 3d 300, 301–302 (2018). Because the case before us arises from a motion to dismiss, respondents’ factual allegations must be accepted as true. *Hernández v. Mesa*, 582 U. S. 548, 550 (2017) (*per curiam*).

II

I would affirm the judgment below. The channels are clearly a public forum: The City has a property interest in them, and New York regulations require that access to those channels be kept open to all. And because the City (1) had

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a duty to provide that public forum once it granted a cable franchise and (2) had a duty to abide by the First Amendment once it provided that forum, those obligations did not evaporate when the City delegated the administration of that forum to a private entity. Just as the City would have been subject to the First Amendment had it chosen to run the forum itself, MNN assumed the same responsibility when it accepted the delegation.

A

When a person alleges a violation of the right to free speech, courts generally must consider not only what was said but also in what context it was said.

On the one hand, there are “public forums,” or settings that the government has opened in some way for speech by the public (or some subset of it). The Court’s precedents subdivide this broader category into various subcategories, with the level of leeway for government regulation of speech varying accordingly. See *Minnesota Voters Alliance v. Mansky*, 585 U. S. 1, 11 (2018). Compare *Frisby v. Schultz*, 487 U. S. 474, 480 (1988) (streets and public parks, traditional public forums), with *Southeastern Promotions, Ltd. v. Conrad*, 420 U. S. 546, 555 (1975) (city-leased theater, designated public forum), with *Christian Legal Soc. Chapter of Univ. of Cal., Hastings College of Law v. Martinez*, 561 U. S. 661, 669, 679, and n. 12 (2010) (program for registered student organizations, limited public forum). But while many cases turn on which type of “forum” is implicated, the important point here is that viewpoint discrimination is impermissible in them all. See *Good News Club v. Milford Central School*, 533 U. S. 98, 106 (2001).

On the other hand, there are contexts that do not fall under the “forum” rubric. For one, there are contexts in which the government is simply engaging in its own speech and thus has freedom to select the views it prefers. See, e. g., *Walker v. Texas Div., Sons of Confederate Veterans, Inc.*, 576 U. S. 200, 207–209 (2015) (specialty license plates);

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Pleasant Grove City v. Summum, 555 U. S. 460, 467–469, 481 (2009) (privately donated permanent monuments in a public park).¹ In addition, there are purely private spaces, where the First Amendment is (as relevant here) inapplicable. The First Amendment leaves a private store owner (or homeowner), for example, free to remove a customer (or dinner guest) for expressing unwanted views. See, e.g., *Lloyd Corp. v. Tanner*, 407 U. S. 551, 569–570 (1972). In these settings, there is no First Amendment right against viewpoint discrimination.

Here, respondents alleged viewpoint discrimination. App. 39. So a key question in this case concerns what the Manhattan public-access channels are: a public forum of some kind, in which a claim alleging viewpoint discrimination would be cognizable, or something else, such as government speech or purely private property, where picking favored viewpoints is appropriately commonplace.² Neither MNN nor the majority suggests that this is an instance of government speech. This case thus turns first and foremost on whether the public-access channels are or are not purely private property.³

¹That does not mean that no restrictions apply at all to the government's expression in such spaces, but it does mean that the government can pick and choose among different views. See *Walker*, 576 U. S., at 207–208, 219; *Summum*, 555 U. S., at 468.

²The channels are not, of course, a physical place. Under the Court's precedents, that makes no difference: Regardless of whether something "is a forum more in a metaphysical than in a spatial or geographic sense, . . . the same principles are applicable." *Rosenberger v. Rector and Visitors of Univ. of Va.*, 515 U. S. 819, 830 (1995) (treating "Student Activities Fund" as the forum at issue and citing cases in which a school's mail system and a charity drive were the relevant forums).

³As discussed below, it is possible that some (or even many) public-access channels are government speech. The channels that MNN administers, however, are clearly better thought of as a public forum given the New York regulations mandating open and equal access. See *infra*, at 827–828, and n. 7.